

**IN THE UNITED REPUBLIC OF TANZANIA
IN THE HIGH COURT OF TANZANIA
IN THE SUB-REGISTRY OF MTWARA
AT MTWARA**

CRIMINAL APPEAL NO. 18065 OF 2025

(Originating from the decision of the District Court of Lindi at Lindi in Criminal Case No. 21747 of 2024)

**BASHIRU RASHIDI ANTHON..... APPELLANT
VERSUS
THE REPUBLIC.....RESPONDENT**

JUDGMENT

27th October & 31st December, 2025

DING'OHI, J.:

The appellant, Bashiru Rashidi Anthon, was arraigned and charged with two counts in the District Court of Lindi at Lindi. The first count of armed robbery contrary to section 287A of the Penal Code 9 CAP 16 R.E 2022. It was alleged that on 17th July 2024, at Ng'apa village within the district and region of Lindi, the appellant did steal a motorcycle, make HAOJUE valued at Tanzanian Shiling 2,400,000, a property of HAMIS ATHUMANI KAZEMBE, and immediately before and after stealing, used a screwdriver to stab MUSA SELEMANI to obtain the aforesaid property. The second count of grievous harm contrary to Section 225 of the Penal Code, Cap 16 R.E 2022. It was alleged that on the same day and place, the appellant did unlawfully grievous

harm to one Musa Selemani Salum by stabbing him on the neck with a screwdriver. The appellant pleaded not guilty to both counts.

To prove the two counts, the prosecution called WP 11523 D/CPL Editha (PW1), Hassan s/o Richard @ Kwayu (PW2), Mussa s/o Selemani @Salumu (PW3), Hamisi s/o Athumani @ Kazembe (PW4), Athumani s/o Selemani @ Nakwenda (PW5), PF 21849/INSP Juma Rupia (PW6), G.7805 D/CPL Baraka (PW7), and Rahama Mustapha (PW8). They also tendered several exhibits, namely, the Certificate of Seizure (Exhibit P1), a Motorcycle with a Registration number. MC 835 EKJ (Exhibit P2), One motorcycle key marked 'A' (Exhibit P3), A screwdriver, blue in colour (Exhibit P4), PF3 Form (Exhibit P5), Scene of crime map (Exhibit P6), motorcycle registration card (Exhibit P7). On the other side, the appellant was the sole defence witness, and no exhibit was tendered.

Briefly, the facts of the case, as gathered from the record of appeal, are that the motorcycle, registered as MC 835 EKJ (Exhibit P2), was owned by PW8, who had entrusted it to PW4 for commercial use. On the day of the incident, PW4, who was ill, reportedly transferred the motorcycle to PW5. PW5 subsequently handed the vehicle to a fellow driver, PW3, to assist in

delivering water to a customer, Hassan Kwayu (who was not called to testify).

It was alleged that on his return from the customer Hassan, PW3 met the appellant, who requested transport to his father's farm in Nga'pa village. Because the motorcycle was not his own, PW3 informed the appellant that they needed to seek permission from PW5 first. The two proceeded to PW5, who was eating at the time, and obtained his consent for the trip. During the journey to the farm, it was alleged that the appellant pulled out a screwdriver and stabbed PW3 in the neck. PW3 fell off the motorcycle, and the appellant took it and departed. Despite his critical state and the screwdriver embedded in his neck, PW3 informed PW5 about the incident. PW5 and his friends then immediately arrived at the scene, where they found PW3 in severe pain and bleeding. They divided their efforts: some rushed PW3 to the hospital, while PW5 and others started a search for the appellant. They spotted the appellant riding the motorcycle a short distance away.

Upon noticing PW5 and his companions in pursuit, the appellant abandoned the motorcycle in the mud and fled on foot. After recovering the motorcycle, PW5 proceeded directly to the Lindi Police Station to report the incident. He surrendered both the motorcycle (Exhibit P2) and the

screwdriver (Exhibit P4) used in the assault to PW1. PW1 formally seized these items per a Certificate of Seizure (Exhibit P1) and transferred them to the exhibit keeper, PW7. Subsequently, PW5 accompanied PW3 and PW7 to the crime scene, where PW7 prepared a sketch map of the scene (Exhibit P6).

PW3 was treated at Ng'apa Health Centre by PW2, the doctor in charge. PW2's clinical findings revealed a fresh, bleeding wound on the right side of the neck, near the trachea. PW2 characterised the injury as a penetrating wound measuring 0.5 x 0.3 cm and concluded it was not self-inflicted. Following the examination, PW2 recorded these findings on a PF3 form (Exhibit P5).

On 20th July 2024, at approximately 8:00 p.m., the appellant was apprehended by PW6 in Mpirua Village, Nachingwea District. Following his arrest, he was transferred to the Lindi Police Station and, upon completion of the investigation, was arraigned before the trial court to answer the charges.

In his defence, the appellant denied the allegations, maintaining they were fabricated. He testified that on 17th July 2024, he spent the day assisting his brother in a vegetable garden. He further stated that he

departed early the following morning for his own village, where he was subsequently apprehended on 19th July 2024.

At the end of the trial, the trial court was satisfied that the prosecution proved the charge to the required standard. Consequently, the appellant was found guilty, convicted, and sentenced to serve 30 years' imprisonment for the first count and 2 years for the second count. The sentences were ordered to run concurrently.

Aggrieved with the conviction and sentence, the appellant lodged this appeal based on the following grounds of appeal: **one**, the trial Magistrate erred in law and facts by convicting the appellant basing on the exhibit PF3 and seizure certificate which its un procedural violation with the requirement by the law; **two**, the trial Magistrate erred in law and fact by convicting and sentencing the appellant without considering the failure of prosecution to prove certificate of seized from the crime scene/apprehension area; **three**, the trial Magistrate erred in both law and fact by convicting the appellant without considering the principles which have to be taken into account in respect to seize and chain of custody and preservation of exhibits that recovered from the crime scene in the mud and unknown place; **four**, the trial Magistrate erred in law and fact by convicting the appellant while

prosecution did prove the case beyond reasonable doubt, without considering the evidence while there is contradiction in the time occurred of crime; **five**, the trial Magistrate erred in law and fact by convicting the appellant by relying on consistence and contradictory statements by prosecution's witnesses; **six**, the trial Magistrate erred in law and fact by convicting and sentencing the appellant basing on evidence given by prosecution witness only not considering the evidence given by DW1 apprehended to Nachingwea and refused to knows the charge alleged by and not recovered with thing related with the offence alleged by prosecution; **seven**, the trial Magistrate erred in law and fact by convicting the appellant while prosecution side failed to prove the case beyond reasonable doubt.

At the hearing, the appellant appeared in person unrepresented, while Mr Sebastian Majaliwa, the learned State Attorney, appeared for the respondent Republic.

When the appellant was invited to submit in support of his grounds of appeal, he prayed that his grounds of appeal be adopted as his submission and his appeal be allowed.

In response, the State Attorney supported the trial court decision. Submitting the 1st and 2nd grounds of appeal, where the appellant complains

that in convicting him, the trial court relied on the evidence of Exhibit P5, which is the PF3 of the victim, and the seizure certificate, Exhibit P1. He stated that those exhibits were tendered and admitted in accordance with all required procedures after they were seized and tendered in the trial court. He stated further that the PF3 was tendered by the doctor himself, who treated the victim. He identified the same before it was tendered and admitted as an exhibit. The witness read over the same at the admission process per the law. The certificate of seizure was also tendered in court by a person who filled it, who is the PW1; it listed the exhibits that were tendered in court. The appellant was asked whether he had an objection before it was admitted. He replied that he had no objection. Therefore, he maintained that the 1st and 2nd grounds of appeal have no merit and prayed that they be dismissed.

On the 3rd ground, the appellant questions the integrity of the chain of custody for the seized exhibits, alleging that it was broken. However, the state attorney argues that the chain of custody remained intact. He stated that the evidence presented indicates that PW1 received the exhibits directly from PW5 and completed the seizure certificate immediately. PW1 then transferred the exhibits to PW7, the exhibit keeper, documenting the

handover in the exhibit book (PF16). He added that the exhibit keeper later testified that on 27th August 2024, he handed the exhibits to Detective CPL Kibibi to be tendered in court. He provided a detailed account of the exhibits' movement from reception to their admission in court on 26th September, 2024. Notably, the appellant did not object to the admission of the exhibit book (PF16) as evidence. Therefore, the state attorney maintained that there is no proof of any break in the chain of custody for the seized exhibits.

Submitting the 4th and 7th grounds of appeal jointly, the State Attorney stated that the appellant complains that he was convicted when the charge was not proved beyond a reasonable doubt. However, he maintained that they proved the charge. On the first count of Armed robbery, he stated that the prosecution was required to prove the stealing, and use of a weapon in the course of stealing, and thirdly, to prove the person who stole the property of another. He asserted that PW3, the victim, stated that on the date of the incident, he carried the appellant on the motorcycle. Before they reached the intended destination, the appellant stabbed him in the neck using the '*bisibisi*'. The PW3 left the motorcycle there, and the appellant took it and left with it. PW3 informed PW5 about the incident. They chased the appellant, who was with the stolen motorcycle, but after they were about to

catch him, the appellant left the motorcycle and ran away. Since the incident took place at about 15.00hrs, he argued that the appellant was properly identified because by then he lived together with the PW5 and the PW3. Therefore, he insisted the trial court was right in finding the appellant guilty of Armed robbery.

Regarding the second count of causing grievous harm, he argued that it was well proved with all three ingredients. He stated that the three ingredients are whether somebody was grievously harmed. Second, was it done unlawfully? And thirdly, who did that? Referring to the evidence of PW2, the State Attorney stated that the doctor explained how he received the victim, who is PW3, at the hospital and treated him. He described how the victim was injured and wounded in the neck area by the sharp object. Also, the victim himself (PW3) stated and confirmed that he was injured, and PW5 confirmed that he saw the victim when he was injured in the neck. He maintained that this issue was proven.

Another issue was whether it was the appellant who harmed the victim. He stated that it was answered by the evidence of PW3, the victim, and PW5 because they saw the appellant clearly, as it was a bright day.

He was of the view that the prosecution side proved the charge against the appellant, as found by the trial court.

On the 5th ground of appeal, the appellant complains that he was convicted while the evidence of the prosecution witnesses conflicted. The State Attorney argued that after going through the evidence of all eight prosecution witnesses, he found no place where those witnesses conflicted with each other in their evidence. He argued that their evidence was corroborative, as evident from the proceedings of the prosecution side.

Lastly, the appellant complains that his defence evidence was not considered by the trial court in its judgment. The State Attorney contended that if this court goes through the trial court judgment, it will find the defence evidence was well evaluated, considered, but in the end, the trial court rightly found the appellant guilty of the offence. He invited this court to be guided by the decision of the Court of Appeal in the cases of the **DPP vs. Shariff Mohamed @ Athumani and 6 Others**, Criminal Appeal No. 74 of 2016, where the Court spell out the procedure of tendering exhibit and who is to so tender document, and also the case of **Paulo Maduka & Others vs. Republic** (Criminal Appeal 110 of 2007) [2009] TZCA 69 (28 October 2009).

In rejoinder, the appellant maintained that the prosecution's evidence conflicted with each other. He stated that the PW4, for example, admitted that he was giving the hearsay evidence. And the State Attorney stated that the incident happened at 15.00hrs, and at the same time, it was stated in evidence that after the incident, the PW5 was phoned by the client that he wanted a motorcycle for hire, and at the same 15.00hrs, the motorcycle was stolen. According to him, that was confusing. He stated further that the victim said he had been received by the doctor at the same 15.00 hrs. The PW7, who drew the sketch map of the scene of the crime, and in cross-examination, stated that when the offence was committed, it was the last rainy season. He insisted there was confusion and prayed his appeal be allowed and he be released from prison.

Having considered the grounds of appeal, reviewed the record of appeal and the submission of the State Attorney, as well as the appellant's rejoinder. I find the main issue for determination is whether this appeal has merit based on the appellant's complaints.

It is noteworthy to point out that in my determination, I will re-evaluate the entire evidence on record, subject it to a critical scrutiny, and arrive at my own conclusion of facts, if necessary, as this is the first appellate court.

See the case of **Ahazi Kilowoko vs. Republic** (Criminal Appeal No. 351 of 2023) [2025] TZCA 222 (17 March 2025).

Starting with the 1st ground of appeal, the appellant argued that he was convicted based on PF3 and the Certificate of seizure, which violated the procedure as per the requirements of the law. However, he did not elaborate on his complaint as to what procedure those exhibits violated. Upon my perusal of the trial court record, I agree with the State Attorney that the PF3 was tendered by PW2, the doctor who attended PW3, while the Certificate of seizure was tendered by PW1, the investigator who received the seized items from PW5. As explained under the Exhibit Management Guidelines 2020, both witnesses laid the foundation and identified the exhibits before requesting the court to admit them. Before admission of the said exhibits, the appellant was allowed to object. The record shows that he objected to the tendering of the Certificate of seizure, but the trial court overruled his objection. Considering the sequence of how the exhibits were tendered and admitted in court, I find there was no procedural irregularity. Hence, this ground lacks merit.

As for the 2nd ground of appeal, I have had a very difficult time understanding the appellant's complaint, but upon thorough scrutiny, I see

that the appellant is complaining that the certificate of seizure was not filled out at the scene of the incident. It is undisputed that the Certificate of seizure was filed at the police station on 18th July 2024 by PW1 after PW5 delivered the motorcycle and the screw driver from the scene of crime. PW5 explained that the appellant fled, abandoned the motorcycle, then picked it up and took it to the police station. There is evidence that, on 20th July 2024, the appellant was arrested by PW6 in Nachingwea. Therefore, I find the prosecution's evidence established how the exhibits found their way to the police station and why the certificate of seizure was not filled out at the scene. Thus, this complaint is unfounded.

On the 3rd ground of appeal, the appellant challenges the chain of custody of the seized exhibits. The State Attorney maintained that the chain of custody remained intact from the time the exhibits were retrieved from the scene of the crime, seized, until they were tendered in court. After reviewing the trial court records, I concur with the State Attorney that the chain of custody was adequately maintained. There is no evidence indicating any disruption in the handling or safeguarding of the exhibits from the moment of seizure until their presentation in court.

On the 6th ground of appeal, the appellant argued that the trial court failed to consider his defence. I have carefully perused the trial court judgment, as rightly stated by the State Attorney, the trial magistrate considered the appellant's evidence but rejected it. Therefore, this ground also lacks merit and is hereby dismissed.

On the 4th, 5th, and 7th grounds of appeal, the appellant's complaint revolves around a similar complaint that the charge was not proved beyond a reasonable doubt. As I stated earlier, the appellant was charged with two counts. The first count is Armed Robbery, contrary to section 287A of the Penal Code. The section reads;

'Any person who steals anything, and, at or immediately before or after stealing is armed with any dangerous or offensive weapon or instrument and at or immediately before or after stealing uses or threatens to use violence to any person in order to obtain or retain the stolen property, commits an offence of armed robbery and shall on conviction be liable to imprisonment for a term of not less than thirty years with or without corporal punishment.'

In the case of **Jamal Seif vs. Republic** (Criminal Appeal No. 378 of 2023) [2025] TZCA 231 (18 March 2025), the Court of Appeal interpreted the above provision stating that;

'According to the above provision of the law, in order to prove an offence of armed robbery, three ingredients must be proved beyond reasonable doubt; One, that there was a stealing of any property capable of being stolen, two, that a person who stole the said property was armed with a dangerous or offensive weapon or instrument and three, that at or immediately before or after stealing the property and in order to obtain or retain it, that person used such a dangerous or offensive weapon or instrument or threatened to use violence against the owner of the property.'

Guided by the above authority, it is my settled view that, upon going through the evidence of every witness who happened to testify in the trial court, in this case, the charge of armed robbery was proved to the required standard. The elements of theft and the use of a weapon to obtain the motorcycle from PW2 were clearly established by the victim himself. PW2 testified that the appellant stabbed him with a screwdriver on his neck before stealing the motorcycle. The screwdriver, along with the stolen motorcycle, was admitted as Exhibit P2 and P3.

Additionally, PW5 corroborated the victim's evidence that he called him to rush to the scene. He stated that at the scene, he found the victim crying and bleeding, and he told him that the appellant had taken the motorcycle. He followed the appellant and saw him riding the motorcycle. After the appellant saw him approaching him, he left the motorcycle and ran away. He was the one who took the screwdriver and the motorcycle to the police station. Therefore, the motorcycle was stolen from the victim by the appellant, who, before and after unlawfully taking the motorcycle, stabbed him on the neck with a screwdriver, which is a dangerous weapon. The first count, as said herein above, was adequately proved per the standard required in criminal cases.

As for the second count of grievous harm, it is apparent that the victim was stabbed in the neck and seriously wounded. The trial court was justified in finding the evidence to that effect given by PW2 credible. The trial court was right in believing the prosecution's evidence that it was the present appellant and not anyone else who assaulted the victim. As rightly found by the trial court, the charge against the appellant on the second count in the trial court was proved beyond a reasonable doubt.

In the final result, I find that the entire appeal lacks merit, warranting dismissal as I hereby do.

It is so ordered.

DATED at MTWARA, this 31st day of December 2025.



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S.R. DING'OHI
JUDGE

COURT: The judgment delivered this 31st day of December 2025 in the presence of Mr. Majaliwa Sebastian, the learned State Attorney, and the appellant, who appeared in person.



A stylized, handwritten signature in blue ink, consisting of several loops and a long horizontal stroke.

S.R. DING'OHI
JUDGE
31/12/2025